

Court No. - 37

Case :- WRIT - C No. - 37495 of 2013

Petitioner :- Sri Krishna

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramraj,D.K. Maurya

Counsel for Respondent :- C.S.C.,A.L. Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Manoj Kumar Gupta,J.

Heard learned counsel for the petitioner and Sri A.L. Yadav, learned counsel for the respondents 3 and 4, U.P. Power Corporation Ltd.

By this writ petition the petitioner has prayed for mandamus directing the respondent no.2 to release the petitioner, arrested in pursuance of the recovery citation dated 1-4-2013 and further directing the respondents 3 and 4 to correct the bill according to meter reading. Petitioner's case is that he has filed a complaint before the District Consumer Forum being complaint no. 75 of 2011 which is pending consideration. Learned counsel for the petitioner submits that since the complaint is pending consideration, respondents could not have issued recovery proceedings. Learned counsel for the petitioner does not show that the Consumer Forum has passed any order staying the recovery proceedings. There being no stay, respondents were well within their jurisdiction to initiate recovery proceedings for electricity dues. In so far as prayer for correction of electricity bills, remedy is available to the petitioner under clause 6.5 of the U.P. Electricity Supply Code, 2005.

The petitioner has been arrested in pursuance to the recovery proceedings. No other reason has been pointed out to challenge the recovery proceedings. We do not find any merit in the writ petition.

The writ petition is dismissed.

(Manoj Kumar Gupta, J.) (Ashok Bhushan J.)

Order Date :- 15.7.2013

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